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Case Number: 24STCV07875 Hearing Date: June 25, 2026 Dept: 400

MOTION TO COMPEL

FURTHER RESPONSES

The Court

tenders the following tentative decision in the matter O. A., et al. v.

Jessica DeVita, Los Angeles County Superior Court case number 24STCV07875,

set for hearing on June 25, 2026. O. A., J. A., and M. A. (collectively, Plaintiffs)

move for an order compelling further responses to their requests for production

of documents, set two (RFPs) from Jessica DeVita (Defendant). Defendant opposes

the motion. Plaintiffs' motion is denied.

A.

Legal Standard

A party may move for an order

compelling further responses to a request for production of documents if the

demanding party deems that responses are incomplete, evasive, or contain

meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to

compel further responses to requests for production "shall set forth specific

facts showing good cause justifying the discovery sought by the inspection

demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

"For discovery purposes, information is

relevant if it 'might reasonably assist a party in evaluating the case,

preparing for trial, or facilitating settlement.'

[Citation]. Admissibility is not the test and information, unless

privileged, is discoverable if it might reasonably lead to admissible evidence.

[Citation] These rules are applied liberally in favor of discovery." (Gonzales

v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Plaintiffs served RFPs on Defendant on October 31, 2025. (Harman-Holmes Decl. ¶ 3.) Defendant offered verified responses on December 9 and document production on December 16. (Id. ¶ 4.) Plaintiffs identified deficiencies in the responses and filed a motion to compel further responses which the Court granted on February 19, 2026. (Id. ¶¶ 5–6.) Defendant served additional supplemental responses on March 20, but Plaintiffs continue to contend that the responses are deficient. (Id. ¶¶ 8–11.) Plaintiffs filed the present motion seeking further responses to RFPs 34 and 39 on May 6.

As a threshold matter, Defendant contends that Plaintiffs have not met and conferred as required under section 2031.310, subdivision (b)(2). However, Plaintiffs did meet and confer regarding the alleged deficiencies in Defendant’s original responses. When Plaintiffs received supplemental responses they still believed to be deficient, they sent another correspondence identifying the relevant issues. Plaintiffs did not file the present motion until after Defendant responded to that communication. (Marandjian Decl. ¶¶ 12–14.) Thus, the Court finds that Plaintiffs’ properly met and conferred before filing the present motion. The Court turns to whether further responses are warranted.

First, Plaintiffs seek a further response to RFP 34 which pertains to phone records, call logs, and text message content from Defendant’s phone on November 4 and 5, 2022. Defendant’s response redacts certain portions of the submitted communications pursuant to the marital communications privilege and asserts that some call logs were lost. A party may affirm that it is unable to comply with an inspection demand after a diligent search and reasonable inquiry has been made by stating that the records have been lost. (Code Civ. Proc., § 2031.230.) And if an objection to a request is based on a claim of privilege, the response shall include information allowing the other party to evaluate that privilege claim. (Id., § 2031.240, subd. (c).) Thus, Defendant’s responses are proper in that she identifies records which have been lost and the basis for certain statements being

redacted on privilege grounds.

Second, Plaintiffs seek a further response to RFP 39, which pertains to documents reflecting phone calls made by Defendant to any school employee, J. A., or M. A., that reference O. A. Specifically, the request seeks call records, not the content of communications. Defendant asserts that such records have been lost and affirms that a diligent search and reasonable inquiry has been made. Thus, Defendant's response to this request is sufficient as well. Accordingly, the Court denies Plaintiffs' motion.

C. Conclusion

The Court denies Plaintiffs' motion to compel further responses.

MOTION FOR SUMMARY JUDGMENT / ADJUDICATION

The Court tenders the following tentative decision in the matter O. A., et al. v. Jessica DeVita, Los Angeles County Superior Court case number 24STCV07875, set for hearing on June 4, 2026. Jessica DeVita (Defendant) moves for summary judgment, or in the alternative summary adjudication, in her favor against each remaining cause of action alleged in O.A.'s (Plaintiff) complaint, as well as his claim for punitive damages. The Court denies summary judgment and summary adjudication. Separately, Plaintiff moves for summary adjudication as to certain issues related to his cause of action for defamation. The Court denies Plaintiff's motion as well.

A.

Factual

Summary and Procedural History

The following summary is derived from the allegations in Plaintiff's complaint. Plaintiff is a high school boy with a disability who had a long-standing friendship with Defendant's son, M.S., another boy with a disability. (Compl. ¶ 1.) Plaintiff is diagnosed with rare and serious genetic conditions causing neurocognitive delays. (Id. ¶ 13.) He also has a language disorder, anxiety, and

specific learning disabilities. (Id. ¶ 14.) J.A. is Plaintiff's mother and M.A. is his father. (Id. ¶ 11.) Plaintiff has known M.S. for seven years and have been in many of the same special education classes. (Id. ¶¶ 20, 21.) They also were a part of the same soccer league. (Id. ¶ 21.)

On October

10, 2022, Plaintiff went to M.S.'s home for a playdate allegedly supervised by Defendant and M.S.'s stepfather, Jason DeVita. (Id. ¶ 22.) On November 4, 2022, the boys had another playdate allegedly supervised by Defendant. (Id. ¶ 23.) On May 12, 2023, M.S. reported to his teacher that Plaintiff had pressured him to do "sexual things." (Id. ¶ 26.) Plaintiff was suspended after the report pending an investigation. (Id. ¶¶ 27–28.) During the initial investigation, Defendant allegedly posted several negative statements about Plaintiff on her Twitter account which were recognized by other members of the community. (Id. ¶¶ 29–31.) Defendant also allegedly called the coach of the boys' soccer league and stated that Plaintiff had sexually assaulted M.S. (Id. ¶ 32.) After calling the coach, Plaintiff alleges that Defendant approached them at a softball game and stated that Plaintiff had pulled a knife on M.S. and been physically and verbally abusive since grade school. (Id. ¶ 33.) Plaintiff also alleges that Defendant used the soccer league's member list to call other parents and warn them about him. (Id. ¶ 34.)

Plaintiff

alleges that Defendant also called the director of Beyond Karate, where Plaintiff has been a participant, and told her that Plaintiff had assaulted M.S. (Id. ¶¶ 35–39.) She also allegedly communicated with other participants of the program, stating that Plaintiff had raped M.S. (Id. ¶ 40.) She also allegedly circulated a link containing documents related to her request for a restraining order against Plaintiff. (Id. ¶ 46.) On June 16, 2023, the school concluded its investigation and determined that the actions between Plaintiff and M.S. were not forced. (Id. ¶ 50.) Defendant instituted separate proceedings that effectively expelled Plaintiff from high school for multiple months. (Id. ¶ 62.)

Plaintiff

filed the present action on March 28, 2024. The complaint contained causes of action for defamation, abuse of process, and intentional infliction of emotional distress. On November 19, 2024, the Court granted Defendant's anti-SLAPP motion to strike in part, striking Plaintiff's claim for abuse of process. Defendant filed the present motion for summary judgment on March 13, 2026.

Plaintiff filed an opposition on May 15. Defendant filed a reply on May 26.

B.

Evidentiary

Objections

The Court

only need rule on objections to evidence upon which it relies in reaching its ruling. The rest are reserved. In making its ruling, the Court does not rely on any evidence to which a party has objected in ruling adversely against that party.

C.

Legal

Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a claim or defense and if not to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure Section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, a moving defendant "has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389 (*Dore*).) Once the defendant has met that burden, the burden shifts to the opposing plaintiff "to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce

substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

D. Defendant's motion for summary judgment and adjudication is denied.

Defendant moves for summary judgment in her favor on the grounds that she is entitled to judgment as a matter of law as to Plaintiff's remaining causes of action, and no triable issues of material fact exist. Alternatively, Defendant moves for summary adjudication as to each cause of action individually, along with Plaintiff's claim for punitive damages. Because the Court finds that Defendant is not entitled to summary judgment, it addresses each issue individually.

Triable issues of material fact exist with respect to Plaintiff's first cause of action for defamation.

Defendant contends that she is entitled to judgment as a matter of law as to Plaintiff's first cause of action for defamation. Specifically, she argues the following: (1) the defense of truth applies to each of the allegedly defamatory statements; (2) the allegedly defamatory statements are based upon non-actionable opinions regarding assault and are not statements of fact; (3) Defendant acted with reasonable care in making the statements; (4) Defendant's statements to parents are privileged under Civil Code section 47, subdivision (c); and (5) Defendant's Twitter posts are not defamatory. The elements of a claim for defamation are: (1) a publication; (2) that is false; (3) defamatory; (4) unprivileged; and (5) has a natural tendency to injure or causes special damage. (Taus v. Loftus (2007) 40 Cal.4th 683, 720 (Taus).)

First, Defendant argues that the absolute defense of truth applies to each of her statements. Factual truth of allegedly defamatory statements is a complete defense to a defamation claim. (Gilbert v. Sykes (2007) 147 Cal.App.4th 13, 28.) It is the defendant's burden to prove the truth of the statement. (Ringler Associates Inc. v. Maryland Casualty Co. (2000) 80 Cal.App.4th 1165, 1180–1181.) A defendant "need not prove the literal truth of the allegedly libelous accusation, so long as the imputation is substantially true so as to justify the 'gist or sting' of the remark." (Campanelli v. Regents of University of California (1996) 44 Cal.App.4th 572, 582.)

Here, Defendant presents evidence

that Plaintiff admitted to the school principal he had not thought M.S. wanted to engage in sexual activity and that Plaintiff regretted his actions and admitted to “being dumb.” (Plaintiff’s Separate Statement (PSS) ¶ 5; Marandjian Decl., Ex. C.) This evidence would tend to show the veracity of Defendant’s accusations that Plaintiff engaged in non-consensual sexual activity with her child. Indeed, Defendant need not show the literal truth of every statement made. By proving that Plaintiff engaged in non-consensual sexual activity, Defendant would prove that the gist of her remarks were truthful. Thus, Defendant has met her burden of demonstrating the application of the complete defense of truth to Plaintiff’s cause of action for defamation.

Plaintiff must then demonstrate

the existence of a triable issue of material fact. Plaintiff presents evidence that M.S. did not accuse Plaintiff of rape or sexual assault. (PSS ¶ 5; Pitts Depo.) Additionally, Defendant acknowledged that the principal did not believe the conduct described by M.S. was forced. (PSS ¶ 5; DeVita Depo.) Indeed, Plaintiff’s suspension was later overturned, and he was exonerated of misconduct. (PSS ¶ 8; Marandjian Decl., Ex. F.) This substantial evidence alone creates a triable issue of material fact as to the veracity of Defendant’s statements. Thus, the Court finds that Plaintiff has met his burden as well. Accordingly, the Court does not grant summary adjudication based on Defendant’s defense of truth.

Second, Defendant argues that her defamatory

statements were opinions which are not provably false or true. To be defamatory, a statement must ordinarily be of fact, not opinion. (Gregory v. McDonnell Douglas Corp. (1976) 17 Cal.3d 596, 600.) Opinions and conclusions are actionable only if they are reasonably understood to declare or imply facts capable of proof. (Integrated Healthcare Holdings, Inc. v. Fitzgibbons (2006) 140 Cal.App.4th 515, 527.) In determining whether a statement of opinion is actionable, courts “examine the totality of the circumstances, starting with the language of the allegedly defamatory statement itself.” (Id. at p. 528 [quoting Ruiz v. Harbor View Community Association (2005) 134 Cal.App.4th 1456, 1471].)

Here, Defendant presents evidence

that she reconveyed the opinion of mental health professionals that M.S. had experienced “assault” and “physical abuse.” (RJN, Exs. 1a and 1b.) While it is

true that whether certain actions qualify as assault or abuse may be a matter of opinion, accusations of the same imply facts capable of proof. Even if Defendant's comments were limited to accusations of assault by Plaintiff, such accusations would imply actions by Plaintiff that are not a matter of opinion. And Defendant's accusations were not so limited. Rather, she told another individual that Plaintiff had sexually assaulted M.S. (PSS ¶ 10; Hope Decl. ¶ 17.) While sexual assault can describe a range of conduct, it is not a matter of opinion as it declares or implies facts. Thus, Defendant has not met her burden of demonstrating that her statements were a matter of opinion.

Third, Defendant argues that she acted with reasonable care in making her statements. To prove defamation, a private individual plaintiff must show that the defendant did not act with reasonable care in checking the truth or falsity of information before publishing it. (*Carney v. Santa Cruz Women Against Rape* (1990) 221 Cal.App.3d 1009, 1016.) Here, Defendant offers evidence that at the time she made alleged defamatory statements, she had been briefed by the school of Plaintiff's assault and had been told by M.S. of the events. (PSS ¶¶ 6, 9; Marandjian Decl., Ex. E; DeVita Decl.) Based on this information from multiple sources, Defendant has met her burden of demonstrating that she acted with reasonable care in making the defamatory statements.

Plaintiff must then demonstrate the existence of a triable issue of material fact. Plaintiff submits evidence that Defendant failed to investigate what occurred on November 4, 2022, before accusing Plaintiff of assault. This was one of the dates on which M.S. allegedly reported he was assaulted. (PSS ¶ 15; DeVita Depo.) Yet Plaintiff submits evidence that Defendant did not ask M.S. what occurred that day or discuss the matter with Jason DeVita, even though he had been supervising the playdate. (PSS ¶ 15; DeVita Depo.) A jury could determine that Defendant did not act reasonably in failing to properly investigate the matter before making accusations. Thus, Plaintiff has demonstrated that triable issues of material fact exist with respect to whether Defendant acted with reasonable care. Accordingly, the Court does not grant summary adjudication on this ground either.

Fourth, Defendant argues that her statements were privileged. Communications are privileged if made without malice to a person interested in that matter by one who is also interested. (Civ. Code, § 47, subd. (c).) The privilege is recognized "where the

communicator and the recipient have a common interest and the communication is of a kind reasonably calculated to protect or further that interest.” (Barker v. Fox & Associates (2015) 240 Cal.App.4th 333, 353.) Once a common interest is demonstrated, it is the plaintiff’s burden to show that the defendant acted with actual malice in making false statements. (McGrory v. Applied Signal Technology, Inc. (2013) 212 Cal.App.4th 1510, 1538.)

Here, Defendant has failed to demonstrate that all her statements are protected by the common interest privilege. Defendant argues that she made statements to a community of parents in the Santa Monica area with children with disabilities who fraternized together. These parents shared the interest of keeping their children safe. However, whether these various individuals, including school parents, personnel, teachers, community members, and other people connected to the disability-serving program in which Plaintiff participated qualify as sharing a common interest is a disputed factual issue. Indeed, Plaintiff maintains that these individuals did not share a common interest under Civil Code section 47, subdivision (c). Defendant has not presented legal authority demonstrating that a common interest exists between all individuals who know or associate with Plaintiff. Thus, summary adjudication is not appropriate on this ground, either.

Finally, Defendant argues that her Twitter posts are not defamatory. But as discussed above, even if this was the case, Defendant made other allegedly defamatory statements and factual disputes exist as to whether she is liable for those. Thus, this argument is without merit as well. Accordingly, the Court denies summary adjudication as to Plaintiff’s first cause of action for defamation, and by extension denies Defendant’s motion for summary judgment.

Triable issues of material fact exist with respect to Plaintiff’s third cause of action for intentional infliction of emotional distress.

Defendant contends that she is entitled to judgment as a matter of law as to Plaintiff’s third cause of action for intentional infliction of emotional distress. Specifically, she argues the following: (1) it is derivative of Plaintiff’s defamation claim; (2) Defendant’s statements are protected under the common interest privilege; (3) Defendant’s communications with the school district are absolutely privileged under Civil

Code section 47, subdivision (b); (4) Plaintiff cannot establish that Defendant intended to harm him; (5) Plaintiff cannot establish that Defendant's conduct was extreme and outrageous; and (6) Plaintiff cannot show that Defendant caused him damages. To prevail on a claim for intentional infliction of emotional distress, a plaintiff must show: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) Conduct is considered outrageous when it is "so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Id. at pp. 1050–1051.)

Defendant's argument that she is entitled to judgment as a matter of law because Plaintiff's intentional infliction of emotional distress claim is derivative of his defamation claim is without merit because the Court already denied summary adjudication as to Plaintiff's defamation claim. Similarly, the Court has already resolved that Defendant is not entitled to summary adjudication under the common interest privilege. Thus, the Court turns to Defendant's other arguments.

Additionally, Defendant contends that the litigation privilege defeats Plaintiff's claim. Specifically, she maintains that her litigation activities regarding seeking a temporary restraining order and filing a federal complaint are privileged. However, Defendant fails to demonstrate how this defeats Plaintiff's claim as a matter of law. Plaintiff's allegations related to intentional infliction of emotional distress encompass Defendant's defamatory statements to other parents as well. Even if the litigation privilege did apply to Defendant's litigation related conduct, Plaintiff's intentional infliction of emotional distress claim would still stand. Thus, Defendant has not met her burden of demonstrating the existence of a complete defense to Plaintiff's cause of action.

Next, Defendant maintains that Plaintiff cannot establish she intended to harm him, that her conduct was extreme or outrageous, or that Defendant caused Plaintiff's damages. However, a plaintiff is not required to prove intentional conduct. Rather, Plaintiff need only show that Defendant acted with reckless disregard of the probability of causing emotional distress. Plaintiff offers evidence that Defendant publicly and privately accused Plaintiff of sexual assault, predatory conduct, and

abuse. (PSS ¶¶ 10, 17; Hope Decl. ¶ 17; Cooper Decl. ¶ 21–22.) The making of such accusations could constitute reckless disregard of the probability of causing emotional distress. Thus, even if Defendant did meet her burden, a triable issue of material fact exists with respect to this element. Similarly, Defendant has failed to demonstrate that Plaintiff has not shown extreme or outrageous conduct as a matter of law. The statements discussed above could be found extreme and outrageous by a factfinder if determined to be false. And while Defendant maintains that Plaintiff suffered emotional distress because of actions taken by the school, she does not explain how her own alleged defamatory statements did not cause Plaintiff to suffer emotional distress. Thus, Defendant has not met her burden of demonstrating that Plaintiff cannot prove an essential element of his cause of action. Accordingly, summary adjudication is denied as to Plaintiff's third cause of action for intentional infliction of emotional distress as well.

Plaintiff has produced sufficient evidence to state a claim for punitive damages against Defendant.

Defendant argues that summary adjudication is appropriate as to Plaintiff's claim for punitive damages. A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined as conduct intended to injure the plaintiff or despicable conduct by a defendant acting with a willful and conscious disregard of the rights and safety of others. (Id., § 3294, subd. (c)(1).) Oppression means despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of their rights. (Id., § 3294, subd. (c)(2).) And fraud refers to intentional misrepresentations or concealment of a material fact known to the defendant. (Id., § 3294, subd. (c)(3).) In defamation cases, malice may be shown through Defendant's having reasons to doubt the truth or having relied on unreliable sources or failed to verify them. (Tilkey v. Allstate Insurance Co. (2020) 56 Cal.App.5th 521, 554–558.)

Here, Plaintiff presents evidence that Defendant failed to check with witnesses to the alleged assault before making accusations. (PSS ¶ 15; DeVita Depo.) This evidence suggests potential malice through Defendant's failure to verify her sources. Thus, even if Defendant satisfied her burden, triable issues of material fact exist as to whether Plaintiff is entitled to punitive damages as well. Accordingly,

Defendant's motion is denied.

E. Plaintiff's motion for summary adjudication is denied.

Plaintiff seeks summary adjudication of the following issues related to his cause of action for defamation: (1) whether Defendant published statements to third parties; (2) whether Defendant's statements constitute statements of fact; (3) whether Defendant's statements constitute defamation per se; (4) whether Defendant republished accusations related to Plaintiff after receiving contradicting information; and (5) whether damages are presumed.

As a threshold matter, Defendant argues that Plaintiff's motion is procedurally improper. "A party may move for summary adjudication as to one or more causes of action within an action . . . or one or more issues of duty, if the party contends that the cause of action has no merit . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) Separately, a party may move for summary adjudication of a legal issue that does not completely dispose of a cause of action if it and the opposing party submit a joint stipulation stating the issues to be adjudicated and a declaration that doing so would be in the interest of judicial economy. (Id., § 437c, subd. (t).) Here, the Court has not been provided with such a stipulation. Thus, Plaintiff's motion is only proper if it completely disposes of a cause of action.

As discussed above, to prove defamation a plaintiff must show the following: (1) a publication; (2) that is false; (3) defamatory; (4) unprivileged; and (5) has a natural tendency to injure or causes special damage. (Taus, supra, 40 Cal.4th at p. 720.) Here, Plaintiff seeks adjudication of whether there was a publication, whether it was defamatory, and whether there were presumed damages. Plaintiff does not seek adjudication as to whether the statements were false. See Plaintiff's Proposed Order 3/31/26. Thus, Plaintiff's motion would not dispose of an entire cause of action and is improper under subdivision (f). Courts do not adjudicate factual issues or certain elements of a cause of action absent a stipulation pursuant to subdivision (t). Accordingly, Plaintiff's motion is

denied.

Conclusion:

Defendant's motion for summary judgment and adjudication is denied. Plaintiff's motion is denied as well.